

25VECV00351 25VECV00351

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-02

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Case Number: 25VECV00351 Hearing Date: July 2, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

AZUCENA JULIETA MICOLANI, an individual,

Plaintiff,

vs.

VOLKSWAGEN GROUP OF AMERICA, INC., a New Jersey Corporation, and DOES 1 through 10, inclusive,

Defendant.

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ORDER DENYING PLAINTIFF'S MOTION TO COMPEL COMPLIANCE WITH COURT'S MARCH 3, 2026 DISCOVERY ORDER

This is a lemon law action. Plaintiff Azucena Julieta Micolani ("Plaintiff") alleges Song-Beverly Act violations against Defendant Volkswagen Group of America, Inc. ("Defendant") in connection with her purchase of a 2021 Volkswagen Atlas ("Subject Vehicle"). Plaintiff alleges the Subject Vehicle suffered from electrical, engine, steering, structural, emission, transmission, and suspension system defects.

On January 23, 2025, Plaintiff filed a Complaint alleging (1) Violation of Song-Beverly Act - Breach Of Express Warranty; (2) Violation of Song-Beverly Act - Breach of Implied Warranty; (3) Violation of The Song-Beverly Act Section 1793.2.

On March 3, 2026, the Court granted Plaintiff's Motion to Compel Further Discovery.

On April 6, 2026, Plaintiff filed the instant Motion.

On April 21, 2026, the Court granted the parties' stipulation to continue trial due to Plaintiff's death.

On April 22, 2026, Defendant filed an opposition.

III. LEGAL STANDARD

Every court has the power "[t]o compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein." (Code Civ. Proc., § 128(a)(4).)[1]

IV. ANALYSIS

"On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc. § 377.31.) The person who seeks to commence or continue a pending action as the decedent's successor in interest shall execute and file an affidavit or declaration that complies with Code of Civil Procedure § 377.32.

The Court notes Plaintiff's date of death was April 8, 2025. (See Declaration of Successor filed May 21, 2026; See Joint Stipulation granted April 21, 2026, Nos. 6, 8 [acknowledging that a motion to substitute successor in interest required for case to proceed].) No motion to substitute a successor in interest has been filed and granted. Plaintiff's counsel improperly filed this Motion and Defendant's counsel raised this issue with Plaintiff's counsel. (See Declaration of Brian Infante filed April 22, 2026, ¶¶ 9-10.) The instant action cannot progress until there has been a substitution, as Plaintiff's former counsel lacks authority to continue litigating the case on behalf of decedent.

Accordingly, the Court DENIES this Motion on procedural grounds.

V. CONCLUSION

Based on the foregoing, the Court DENIES Plaintiff's Motion to Compel Compliance With Court's March 3, 2026, Order on procedural grounds.

IT IS SO ORDERED.

DATED: July 2, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.